

**Judge Mosbarger – Law & Motion – Wednesday, June 24, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 24CV00765 HATZIS, MORGAN RAE V. PRIETO, MARIA NERISSA ET AL

EVENT: Plaintiff's Amended Motion for Monetary Sanctions

As an initial matter, Plaintiff/Cross-Defendant Morgan Rae Hatzis ("Plaintiff" herein), has requested an "Order requiring Defendants and their counsel of record to serve all future filings, papers, discovery, and case correspondence in this action exclusively through Butte County Superior Court's approved electronic filing service provider as required by Butte County Local Rule 21, and not by personal email transmission or first-class mail." However, Butte County Local Rule 21 addresses mandatory electronic filing, not mandatory electronic service. This request for relief is therefore unsupported and is denied.

The Court finds that Defendants/Cross-Complainants Maria Nerissa Prieto and Privilege Medical, Inc. ("Defendants" herein) did not misuse the discovery process and acted with substantial justification and in good faith. As such, the Motion is denied in its entirety.

The Court notes that should there be difficulty in scheduling future depositions in this case, the Court is not ordering the parties to participate but makes available the pre-trial discovery conference procedure as set forth in Butte County Local Rule 2.14.C. should any party wish to voluntarily avail themselves of the procedure.

2. 24CV01006 PARRIS, LORI V. ISAKSON, BENJAMIN, MD ET AL

EVENT: Defendant Brian Courtney, M.D.'s Motion for Summary Judgment

The Motion for Summary Judgment being unopposed, and Defendant having made a prima facie showing that there is no liability with respect to Defendant Brian Courtney, M.D., the Motion for Summary Judgment is granted. Defendant shall submit a form of order within two weeks.

3-4. 24CV01277 13290 CONTRACTORS LANE, LLC V. WISHBONE RANCH, LLC ET AL

EVENTS: (1) Defendant Brian Howe's Demurrer to Third Amended Complaint

(2) Defendant Brian Howe's Motion to Strike Third Amended Complaint

In regard to Defendant Brian Howe's Demurrer to Third Amended Complaint ("TAC" herein), the Court finds that the Plaintiff has sufficiently stated a cause of action for breach of contract [see TAC at ¶¶2, 14, 16, 18-19, 21, 23-27], and the First Cause of Action for Breach of Contract is not time barred. See, *Gilkyson v. Disney Enterprises, Inc.* (2016) 244 Cal.App.4th 1336, 1341-1342 [finding that under the continuous accrual doctrine each breach of a recurring obligation is independently actionable and that the doctrine represents an equitable response to the inequities that would arise if the expiration of the limitations period following a first breach of duty or instance of